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It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

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TENTATIVE RULINGS
September 24, 2026

#	Case Name	Tentative
1.	30-2025-01516539-CU-OE-NJC Clasby vs. City of Seal Beach	Before the Court is a Motion to Compel Production brought by plaintiff Julia Clasby (“Plaintiff”) against defendant City of Seal Beach (“Defendant”). ROA 68. Plaintiff seeks an order pursuant to California Evidence Code Sections 1043 and 1045 (a <i>Pitchess</i> motion) compelling Defendant to produce and disclose materials relevant to the subject matter of this litigation, including peace officer personnel records, following an <i>in camera</i> review. ROA 68. The underlying action arises out of Plaintiff’s employment as a police officer with Defendant City of Seal Beach. Plaintiff alleges employees of Defendant City of Seal Beach’s Police Department harassed and discriminated against Plaintiff and then retaliated against Plaintiff because she internally reported this harassment and discrimination. Plaintiff contends that the employees’ actions were

		discriminatory on the basis of Plaintiff's sex and or gender. Plaintiff also contends that Defendant failed to stop discriminatory, harassing, and retaliatory conduct by its employees of which it was aware. Defendant requests that materials from still open internal affairs investigations be lodged for in camera review, and any disclosure ordered, once the investigations have concluded. ROA 86. Additionally, Defendant requests that the Court narrow the temporal scope of Request No. 7 from ten (10) years to five (5) years and limit the scope of Request No. 6 to materials from the 2022 promotional process and the comparator's performance evaluations and training records from the preceding three (3) to five (5) years. <i>Id.</i>, p.4. "Pitchess" Motion Standard Peace officer personnel records and information obtained from those records are confidential and may not be disclosed in any criminal or civil proceeding, except pursuant to a two step procedure referred to as a <i>Pitchess</i> motion. Cal. Pen. Code, § 832.7(a); Cal. Evid. Code § 1043; <i>Cnty. of Los Angeles v. Super. Ct.</i>, 219 Cal. App. 3d 1605, 1610 (1990). Personnel records are defined as: any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following, [among others]: (1) [p]ersonal data, including marital status, family members, educational and employment history, home addresses, or similar information; (2) [m]edical history; (3) [e]lection of employee benefits; or (4) [e]mployee advancement, appraisal, or discipline. Cal. Pen. Code §§ 832.8(a)(1), (2), (3), (4). Good cause for discovery exists when the defendant shows both "'materiality' to the subject matter of the pending litigation and a 'reasonable belief' that the agency has the type of information sought." <i>City of Santa Cruz v.</i>
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	<i>Municipal Ct.</i>, 49 Cal. 3d 74, 84 (1989); <i>Warrick v. Super. Ct.</i>, 35 Cal. 4th 1011, 1019 (2005); <i>see</i> Cal. Evid. Code § 1043(b)(3). To show the requested information is material, the declaration must contain a “‘specific factual scenario’ which provide[s] sufficient information to allow the trial court to assess whether the records [are] material[.]” <i>City of San Jose v. Super. Ct.</i>, 67 Cal. App. 4th 1135, 1146 (1998). In other words, the moving party must articulate how the discovery being sought will support his claim or proposed defense, or how it will impeach the officer’s version of events. <i>See Garcia v. Superior Court</i>, 42 Cal. 4th 63, 71 (2007). “This good cause showing is a ‘relatively low threshold for discovery.’ (Citation omitted). Assertions in the affidavits ‘may be on information and belief and need not be based on personal knowledge (citation omitted), but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.’” <i>Garcia, supra</i>, 42 Cal. 4th at 70. If the moving party has established good cause, the trial court proceeds to the second step—an in chambers examination of the records to determine whether they have any relevance to the issues presented in the current proceedings. Cal. Evid. Code § 1045(b). In the in camera hearing, the court determines whether the relevant information or documents are precluded from disclosure by California Evidence Code Section 1045, subdivisions (b) and (c). Cal. Evid. Code § 1045(b), (c). Further, after an in camera review is undertaken, the trial court will only disclose the names, addresses, and telephone numbers of individuals who have witnessed or have previously filed complaints about similar misconduct by the officer, at least until a later showing of necessity is made. <i>See People v. Matos</i> 92 Cal. App. 3d 862, 868 (1979); <i>see also Haggerty v. Superior Ct.</i> 117 Cal. App. 4th 1079, 1089-109 (2004) (affirming that with respect to third party complaints, only the names, addresses and telephone numbers should be disclosed to protect a police officer’s strong privacy interest in these records, but holding that internal affairs reports, if relevant, should be disclosed after the investigative officer’s analysis and conclusion portions
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	have been redacted.) However, this limitation only applies to third party complaints. If disclosure is ordered, the Court is required to issue an order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” Cal. Evid. Code § 1045(e). Here, Plaintiff identifies the types of records sought and contends that the documents described in its Motion are in the possession, custody, or control of Defendant and/or their counsel. ROAs 64, 68. The Court finds that the documents requested in the motion are relevant to Plaintiff’s claims. Plaintiff’s counsel’s supporting declaration satisfies the supporting affidavit requirement for a <i>Pitchess</i> motion, as it sets forth the substance of Plaintiff’s claims, and explains the relevance of the requested records. ROA 64. Defendant does not dispute that Plaintiff established good cause for an <i>in camera</i> review of the requested materials. ROA 86. Accordingly, the Court finds Plaintiff has established good cause for an <i>in camera</i> review of documents and related materials identified in their notice of Motion. The Court notes Defendant’s request that materials relating to pending internal affairs investigations be lodged for <i>in camera</i> review and that any disclosure be deferred until the investigations are concluded. However, the Court declines to defer its <i>in camera</i> review or disclosure ordered after the review on that basis. Furthermore, as to Defendant’s requested limitations to Requests Nos. 6 and 7. The Court declines to impose the proposed limitations before conducting its <i>in camera</i> review. The Court will determine, following that review, whether any responsive materials are relevant and subject to disclosure, including whether any information is too remote to provide practical benefit. Pursuant to the foregoing, Plaintiff’s Motion to Compel
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		Production is GRANTED. The Court orders that the custodian of records for the City of Seal Beach produce the records described above for an <i>in camera</i> review on October 9, 2026, at 9:00 a.m. in Department CM02. The Court will conduct an <i>in camera</i> review, subject to the foregoing, and will order disclosure after that review only of those documents it determines are relevant to the matter involved in the pending litigation. Cal. Evid. Code § 1045. Plaintiff shall give notice.
2.	30-2024-01378889-CU-BC-CJC National Funding, Inc. vs. RM Realty Associates, LLC	
3.	30-2024-01444459-CU-WT-NJC Park vs. Optimum Professional Property Management, Inc.	Before the Court is a Motion for Reconsideration brought by movants Optimum Property Management, Inc. ("Movant"). ROA 248. Movants seek reconsideration of the Court's May 21, 2026, Order (ROA 199), imposing monetary discovery sanctions upon Movant's counsel, Jackson Lewis, P.C., in the total collective amount of \$40,419.02, due and payable to plaintiff's counsel, Mozaffari Law, P.C. ROAs 199, 248. Motion for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." <i>Id.</i>